

IN THE SUPERIOR COURT OF COUNTY
(COUNTY NAMED IN THE CAPTION - THE COUNTY WHERE THE ARREST ON THE FUGITIVE
WARRANT OCCURRED; THIS PETITION IS FILED IN THE SUPERIOR COURT OF THAT
COUNTY)
STATE OF GEORGIA

STATE OF GEORGIA,

v. CASE NO.:

MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD, OTN: (if known)
Defendant. JUDGE: (assigned by the court)

PETITION TO RESTRICT ACCESS TO CRIMINAL HISTORY RECORD INFORMATION
(FUGITIVE FROM JUSTICE WARRANT)
(O.C.G.A. Sec. 35-3-37(j)(5))

The defendant, Maria-Alejandra O'Shaughnessy-Whitfield, files this petition in the above-styled criminal case, in the existing case under the existing case number, under O.C.G.A. Sec. 35-3-37(j)(5). The defendant states:

1. The defendant was arrested on a fugitive from justice warrant as provided in O.C.G.A. Sec. 17-13-4, in the county named in the caption.
2. The circumstances warrant restriction, and the harm otherwise resulting to the defendant clearly outweighs the public interest in the criminal history record information being publicly available.

CASE FACTS THE DEFENDANT SUPPLIES (fill each blank from the court record, never from memory; the instructions page lists where each record lives):

Date of the arrest on the fugitive warrant:

.....

The state or jurisdiction that had asked for the defendant to be held:

.....

Your own statement of what happened with the fugitive warrant and any extradition:

.....

Your own statement of how this arrest on your record has been a barrier (state only what you know first-hand; nothing on these lines is written for you):

.....

.....

.....

READ EACH NUMBERED STATEMENT BEFORE SIGNING. Each is pleaded as your own statement. If any numbered statement is not true of your case, do not file this petition; the instructions page tells you where to get help instead.

WHEREFORE, the defendant asks the Court to enter an order directing the Georgia Crime Information Center (GCIC) and every agency in the county named in the caption, including the arresting agency and the jail or detention center, to restrict all criminal history record information pertaining to the fugitive from justice warrant arrest, pursuant to O.C.G.A. Sec. 35-3-37(j)(5), with disclosure limited to what O.C.G.A. Sec. 35-3-37(t) and (v) permit; and, in the alternative, that the petition be set for hearing within 90 days of filing.

DATE SIGNATURE OF DEFENDANT

(The defendant signs and dates this petition personally. Nothing on this page is signed or dated for the defendant. No verification and no notary block is required by statute, and none is added.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Notch Crossing Road, Apartment 14B, Savannah, Georgia
31401-2214

TELEPHONE: (912) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Defendant, Pro Se (where unrepresented)

Route: obligation:track-only:GA:ga-fugitive-j5

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STATE OF GEORGIA,

v. CASE NO.:

MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD, OTN: (if known)
Defendant. JUDGE: (assigned by the court)

PROPOSED ORDER RESTRICTING ACCESS TO CRIMINAL HISTORY RECORD INFORMATION
(O.C.G.A. Sec. 35-3-37(j)(5))

(This page is proposed by the defendant for the Court's consideration, as the controlling practice directs a
proposed order always accompany the filing. Every order line below is completed, signed and dated only
by the Court.)

Before the Court is the defendant's Petition to Restrict Access to Criminal History Record Information
(Fugitive From Justice Warrant) under O.C.G.A. Sec. 35-3-37(j)(5), referencing O.C.G.A. Sec. 17-13-4.

IT IS ORDERED that the Georgia Crime Information Center (GCIC) and every agency in the county
named in the caption, including the arresting agency and the jail or detention center, restrict all criminal
history record information pertaining to the fugitive from justice warrant arrest, identified by the OTN and
the date of arrest stated below, pursuant to O.C.G.A. Sec. 35-3-37(j)(5).

Disclosure of the restricted information remains limited to what O.C.G.A. Sec. 35-3-37(t) and (v) permit.

OTN of the case (needed for this order to be actionable by GCIC):

.....

Date of arrest identified in this order:

.....

SO ORDERED, this day of, 20.....

.....

JUDGE, SUPERIOR COURT

(The judge's signature block is a third-party block. It is never prefilled, and the court dates its own order.)

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v. CASE NO.:

MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD, OTN: (if known)
Defendant.

CERTIFICATE OF SERVICE

I, Maria-Alejandra O'Shaughnessy-Whitfield, certify that on the date stated below I served a copy of the
Petition to Restrict Access to Criminal History Record Information (Fugitive From Justice Warrant) and
the accompanying proposed order on each person listed below, by certified mail, e-filing or hand delivery.

NAME AND MAILING ADDRESS OF THE PROSECUTING ATTORNEY SERVED, IDENTIFIED AS
DISTRICT ATTORNEY OR SOLICITOR-GENERAL FOR THE COUNTY (you write it here before
service; the clerk's office can provide it):

.....
.....

OFFICE OF THE CLERK OF COURT SERVED (the clerk of the court named in the caption; the clerk's
office can confirm its service address):

.....
.....

NAME AND SERVICE ADDRESS OF THE ARRESTING LAW ENFORCEMENT AGENCY (this
route requires notice to the arresting agency as well; confirm the service destination with that agency
before serving):

.....
.....

Method used to serve each recipient (chosen from those listed above, as the clerk directs):

.....

DATE OF SERVICE

SIGNATURE OF DEFENDANT

This page is not proof of service and does not say that anything has been served. It is completed and signed when the copies actually go out. A date or a signature written before the copies go out would be false.

Route: obligation:track-only:GA:ga-fugitive-j5

EXHIBIT A - GEORGIA CRIMINAL HISTORY REPORT SHOWING THE FUGITIVE WARRANT ARREST CYCLE

For: Maria-Alejandra O'Shaughnessy-Whitfield

Filing: the Petition to Restrict Access to Criminal History Record Information (Fugitive From Justice Warrant) in this packet.

ATTACH BEHIND THIS PAGE: your own Georgia criminal history report, with the fugitive warrant arrest cycle identified - and any Georgia court record of the fugitive warrant proceeding, where one exists.

WHERE YOU GET IT: most Georgia sheriff's offices and police departments, or GCIC; the clerk of the court where the fugitive warrant matter was heard, for the court record.

HOW: Obtain the report and identify the arrest cycle for the fugitive warrant. Where the fugitive warrant matter was heard in a Georgia court, ask that clerk for the docket or disposition as well.

The platform never collects, inspects or authenticates this record. You obtain it, you check your answers against it, and you correct the packet where they disagree.

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